

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4248 of 2022

Applicant :- Amit Kumar

Opposite Party :- Dayanand Sharma And 6 Others

Counsel for Applicant :- Pankaj Kumar Tyagi

Hon'ble Rohit Ranjan Agarwal,J.

Supplementary affidavit, filed today, is taken on record.

Sri Raghvendra Kumar Singh, learned counsel has put in appearance on behalf of opposite party no.1. He prays for and is granted one week's time to file affidavit to the contempt application.

Put up this case as fresh on **22nd August, 2022.**

Order Date :- 29.7.2022

SK Goswami

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4248 of 2022

Applicant :- Amit Kumar

Opposite Party :- Dayanand Sharma And 6 Others

Counsel for Applicant :- Pankaj Kumar Tyagi

Counsel for Opposite Party :- Raghawendra Kumar Singh

Hon'ble Rohit Ranjan Agarwal,J.

Learned counsel for the applicant is directed to serve a copy of the contempt application upon Sri Abhishek Srivastava, the counsel who appears for Electricity Department, within twenty-four hours. Sri Srivastava shall thereafter seek instructions in the matter within three days as to why the order of the writ Court dated 29.06.2022 has not been complied with by the Electricity Department and connection, as directed by the writ Court has not been provided to the applicant.

Put up this matter as fresh on 29th August, 2022.

Order Date :- 22.8.2022

Kushal

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4248 of 2022

Applicant :- Amit Kumar

Opposite Party :- Dayanand Sharma And 6 Others

Counsel for Applicant :- Pankaj Kumar Tyagi

Counsel for Opposite Party :- Raghawendra Kumar Singh

Hon'ble Rohit Ranjan Agarwal,J.

Counter affidavit filed on behalf of opposite party no. 1 is taken on record.

Heard Sri Pankaj Kumar Tyagi, learned counsel for the applicant, Sri Yogendra Singh, learned counsel for the opposite party no. 1, and Sri Ravindra Tripathi, Advocate, holding brief of Sri Abhishek Srivastava, learned counsel appearing for the opposite party nos. 2, 3 and 4.

The applicant, who is a tenant of the premises in dispute had approached this Court through Writ-C No. 17882 of 2022. The writ Court without venturing into the merits of the case disposed off the writ petition on 29.06.2022 with a direction to the electricity department that in case the conditions of Clause 4.4 of Electricity Supply Code, 2005 is complied and indemnity bond was submitted by the applicant, the Executive Engineer, Electricity Urban Distribution Division No.-7, Sector 62-C, Noida, Gautambudh Nagar shall pass appropriate orders for grant of electricity connection in the name of the applicant.

According to the applicant's counsel the applicant had complied all the formalities and approached the authorities for extending the electricity connection pursuant to the order of writ Court.

Sri Ravindra Tripathi, learned counsel, appearing for opposite party nos. 2, 3 and 4, submitted that when the lineman went to provide the electricity connection after compliance of the order

of writ Court was made by the applicant and necessary orders being passed by the Executive Engineer, the opposite party no. 1 with the help of police officials of Section 24, Noida, Gautambudh Nagar obstructed in performance of his official duty, hence, the present contempt application has been filed against the officials of the electricity department, the police officers posted at Sector 24, Noida, Gautambudh Nagar and the opposite party no. 1, the landlord.

Sri Yogendra Singh, learned counsel appearing for the opposite party no. 1, states that the compliance by the applicant as to the condition of Clause 4.4 of Electricity Supply Code, 2005 was not done and the orders passed by the Executive Engineer was not in consonance with the terms provided under the said clause. He further submitted that the applicant is not a tenant and no formal rent agreement was executed between the parties. He further relied upon the decision of Apex Court rendered in **Criminal Appeal No. 810 of 2022 [Dilip (Dead) through LRs Vs. Satish & Others]** dated 13.05.2022 wherein the Apex Court has settled the proposition of law that the electricity being the basic amenity of which a person cannot be deprived and the electricity connection of a tenant cannot be declined on the ground of no objection certificate. Apex Court further clarified that it was the electricity supply authority to examine as to whether the application moved by an applicant for electricity connection is in occupation of the premises in question. According to learned counsel appearing for the opposite party no. 1, as the applicant is not a tenant of the premises in question no electricity connection can be issued as the conditions of Clause 4.4 of the Electricity Supply Code 2005 has not been complied with.

I have heard respective counsel and perused the material on

record.

It is clarified, at the very outset, that the Apex Court in case of **Dilip (Supra)** had categorically held that there can be no ground for failure/refusal for declining to provide electricity connection to a tenant on no objection certificate having been refused by the landlord. Apex Court had further clarified that the electricity authorities were only to examine that the applicant is in occupation of premises in question or not. Apex Court had not held that the authorities were to examine any rent agreement or rent deed executed between the landlord and tenant, the only condition is that the applicant must be in occupation of premises in question.

It is not in dispute to either of the parties that the applicant is in occupation of the premises in question. The writ Court had categorically provided that after the indemnity bond as provided in Clause 4.4 was submitted by the applicant, the Executive Engineer was to provide electricity connection and pass necessary orders. Once the Executive Engineer has passed an order for grant of electricity connection to the applicant, the hindrance created by the opposite party no. 1, the landlord, and opposite party nos. 5 and 6, police personnel of the Police Station Sector-24, Noida, Gautambudh Nagar, is totally in contempt of writ Court's order. This Court, prima facie, finds that the opposite party no. 1 and opposite party nos. 5 and 6 are in contempt of the writ Court's order dated 29.06.2022.

Recently Apex Court in case of **Dr. U.N. Bora, Ex. Chief Executive Officer and others Vs. Assam Roller Flour Mills Association and another 2022 (1) SCC 101**, has held that under the contempt jurisdiction, the Court is not expected to conduct a roving inquiry and proceed to decide an issue which has not been dealt with or decided by the Court of first instance,

whose order is said to have been flouted. Disputed question of fact can only be adjudicated before the appropriate forum and not before the contempt Court. Relevant para 8 of the judgment is extracted here as under:

"8. We are dealing with a civil contempt. The Contempt of Courts Act, 1971 explains a civil contempt to mean a willful disobedience of a decision of the Court. Therefore, what is relevant is the "willful" disobedience. Knowledge acquires substantial importance qua a contempt order. Merely because a subordinate official acted in disregard of an order passed by the Court, a liability cannot be fastened on a higher official in the absence of knowledge. When two views are possible, the element of willfulness vanishes as it involves a mental element. It is a deliberate, conscious and intentional act. What is required is a proof beyond reasonable doubt since the proceedings are quasi-criminal in nature. Similarly, when a distinct mechanism is provided and that too, in the same judgment alleged to have been violated, a party has to exhaust the same before approaching the court in exercise of its jurisdiction under the Contempt of Courts Act, 1971. It is well open to the said party to contend that the benefit of the order passed has not been actually given, through separate proceedings while seeking appropriate relief but certainly not by way of a contempt proceeding. While dealing with a contempt petition, the Court is not expected to conduct a roving inquiry and go beyond the very judgment which was allegedly violated. The said principle has to be applied with more vigor when disputed questions of facts are involved and they were raised earlier but consciously not dealt with by creating a specific forum to decide the original proceedings."

This Court finds that the judgment relied on by the counsel for the opposite party no. 1 is of no help to him as Apex Court had clearly held that it is the obligation of the electricity distribution authority on the application being made by a tenant to grant electricity connection after finding that if he is in occupation of the premises in question. In the present case, this fact is not in dispute.

Looking to the facts and circumstances of the case, this Court directs the officials of the electricity department i.e. opposite party nos. 2, 3 and 4 and the police officials of police station Sector-24, Noida, Gautambudh Nagar i.e. opposite party nos. 5 and 6 to immediately provide the electricity connection to the applicant within a period of 72 hours from today.

Put up this case, as fresh, on 06.09.2022 and on that day the counsel appearing for the opposite party nos. 2, 3 and 4 shall apprise the Court about the progress of the matter.

Sri R.K. Mishra, learned Standing Counsel, who appears for the State authorities, shall inform the opposite party nos. 5 and 6 about this order within 24 hours.

Office shall handover a copy of this order upon Sri R.K. Mishra, learned Standing Counsel, free of charge.

On 06.09.2022 the Court shall consider the issue for framing of charges against the opposite party no. 1 for obstructing the compliance of order of writ Court dated 29.06.2022.

Order Date :- 29.8.2022

Shekhar

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Counsel for Opposite Party :- Raghawendra Kumar Singh

Hon'ble Rohit Ranjan Agarwal,J.

On 03.09.2022, the Division Bench in Special Appeal Defective No.395 of 2022 had stayed the order dated 29.8.2022.

In view of the said order, further contempt proceedings are deferred for a period of two months.

List this matter in December, 2022 showing the name of Sri S.K.Mishra, as counsel for the respondent.

Order Date :- 6.9.2022

Kushal

Court No. - 9

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4248 of 2022

Applicant :- Amit Kumar

Opposite Party :- Dayanand Sharma And 6 Others

Counsel for Applicant :- Pankaj Kumar Tyagi

Counsel for Opposite Party :- Raghawendra Kumar
Singh, Abhishek Srivastava, Ajay Mishra, Shri Krishna Mishra

Hon'ble Rohit Ranjan Agarwal, J.

List revised. No one is present on behalf of the applicant to press the contempt application.

Shri Abhishek Srivastava, learned counsel appearing for the Electricity Department states that the special appeal filed against the order of the contempt Court has been decided on 22.03.2023, whereby the matter has been relegated to the Civil Court.

As the matter has been relegated to the Civil Court for redressal of the grievances of the applicant, the contempt application is rendered infructuous and the same stands dismissed.

Order Date :- 30.11.2023

Bhanu